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The Saga of Site C and West Moberly First Nations' Treaty 8 Rights

In July of 2015, BC Hydro began construction work on Site C, the third massive hydroelectric dam on the Peace River. The previous two dams “caused considerable dislocation and hardship” for Indigenous peoples in the area,¹ making it unsurprising that Site C has been the target of significant community and Indigenous opposition.² The 5,550 hectares of river valley allotted to be flooded by Site C is all land covered under Treaty 8.³ Treaty 8 First Nations, including West Moberly, descendants of the Dane-zaa, have consistently held that Site C is an unjustified infringement of treaty rights that protect their “practical, traditional, cultural, [and] spiritual connection to the land.”⁴ In 2010, the West Moberly and other First Nations signed a declaration “vowing ‘to use all legal means to stop the Site C Dam from proceeding.’”⁵

This paper will chronicle West Moberly’s persistent efforts to assert their treaty rights and the resultant series of administrative and judicial decisions that gave a greenlight to the Site C dam, while resolutely declining to determine whether or not the project infringes the Treaty rights of West Moberly. First, administrative decision makers decided that a determination of treaty infringement would not be made during the project’s regulatory approval process. This administrative decision was upheld under judicial review. Furthermore, judicial review courts declined to make a determination of infringement and directed West Moberly to commence a separate civil claim to resolve the matter. The courts then denied West Moberly’s request for an injunction on construction until the conclusion of their trial, scheduled for 2023. I will argue that

¹ Matthew Evenden, “Site C Forum: Considering the Prospect of Another Dam on the Peace River” (2009) 161 *BC Studies* 93 at 93.

² Rachel Gutman, “The Stories We Tell: Site C, Treaty 8, and the Duty to Consult and Accommodate” (2018) 23 *Appeal* 3 at 12.

³ *West Moberly First Nations v British Columbia*, 2018 BCSC 730, 2018 CarswellBC 1066 at para 10 [*West Moberly*].

⁴ *West Moberly*, *supra* note 3 at para 1.

⁵ *West Moberly First Nations v British Columbia*, 2018 BCSC 1835, 2018 CarswellBC 2816 at para 43 [*West Moberly*].

the rights conferred on West Moberly by Treaty 8, and enshrined in section 35 of the *Constitution Act*, have essentially become stranded assets. Indeed, “at no point prior to the issuance of the Environmental Certificate, or since commencing construction, has the Crown or a court determined whether the taking of land for the purpose of Site-C will result in an infringement of Treaty 8.”⁶ Thus, although the Canadian legal system acknowledges that West Moberly holds the claimed treaty rights, Aboriginal law – as it is currently articulated by the administrative decision makers and the judiciary – renders the treaty rights virtually inoperative because determination of whether Site C represents an unjustified infringement has been postponed until *after* construction of the impugned project is nearly complete.

The Federal Crown’s pursuit of treaties with Indigenous Nations between 1871 and 1923 was grounded in the goal of extinguishing “Indian Title.”⁷ According to *Mikisew Cree*, in exchange for the cession of massive tracts of land (840,000 square kilometers,⁸ “Treaty 8 guarantees that [Indigenous signatories] can hunt, fish, and trap on their surrendered traditional territory until it is taken up by the Crown.”⁹ From the inception of Treaty 8 in 1899, there has been an “uneasy tension” between the Indigenous signatories’ expectation that they would continue to be “free to live off the land,” pursuing their “usual vocations” and the Crown’s expectation that they would continuously settle and develop the “surrendered territory.”¹⁰ It is well established that judiciary must navigate this tension through an interpretation that “reflect[s]

⁶ Gutman, *supra* note 2 at 18.

⁷ Gutman, *supra* note 2 at 5.

⁸ *Mikisew Cree First Nation v Canada (Minister of Canadian Heritage)*, 2005 SCC 69, 2005, CarswellNat 3756 at 2 [Mikisew Cree].

⁹ *West Moberly*, *supra* note 5 at 14.

¹⁰ *Mikisew Cree*, *supra* note 8 at 25.

the intentions of both parties” at the time of agreement and attempts to reconcile the competing interests of First Nations and the Crown.¹¹

It is widely acknowledged that large scale industrial development, and the subsequent high level of interference with Indigenous peoples’ hunting, fishing, trapping, and traditional vocations, was likely not anticipated at the time of agreement.¹² Nevertheless, hydroelectricity production has been judicially recognized as one of the legitimate purposes for which the Crown may “take up” land.¹³ The Crown’s right to “take up” land has been broadly interpreted with nominal limitations. In *Mikisew Cree*, the court stated “if the time comes that in the case of a particular Treaty 8 First Nation ‘no meaningful right to hunt’ remains over its traditional territories” then the Crown’s actions likely constitute an infringement of treaty rights.¹⁴ This sets an extremely high bar for establishing a *prima facie* infringement of a Treaty 8 right.

In *Sparrow*, the Supreme Court of Canada (SCC) created a legal test that must be applied whenever an Aboriginal right is *prima facie* infringed to determine whether or not the infringement is justified.¹⁵ Later, in *Badger*, the SCC clarified that infringements of Treaty 8 rights also require justification under the *Sparrow* test because like Aboriginal rights, treaty rights “serve as a limitation on Crown sovereignty.”¹⁶ However, as discussed above, the act of “taking up” treaty land is not presumed to be a *prima facie* infringement and therefore does not automatically trigger *Sparrow*.¹⁷ Rather than requiring justification prior to taking up land, *Mikisew Cree* “extended the *Haida Nation* consultation framework to the taking up of lands

¹¹ *Mikisew Cree*, *supra* note 8 at 28.

¹² *Mikisew Cree*, *supra* note 8 at 30.

¹³ *West Moberly*, *supra* note 3 at 10.

¹⁴ *West Moberly*, *supra* note 3 at 12.

¹⁵ Gutman, *supra* note 2 at 8.

¹⁶ Gutman, *supra* note 2 at 9.

¹⁷ Gutman, *supra* note 2 at 9.

under Treaty 8.”¹⁸ After fulfilling their duty of “consultation and perhaps accommodation,” the Crown may move forward with taking up vast tracts of treaty land for industrial activities up until the point of leaving a First Nation with “no meaningful ability to exercise their treaty rights.”¹⁹ Only at this point will the Crown’s actions automatically require justification under *Sparrow*. As a result, First Nations’ treaty rights are consistently eroded with no administrative or judicial determination of treaty infringement or justification.²⁰ Such has been the experience of West Moberly throughout their ongoing struggle to assert their rights under Treaty 8 with regard to the Site C dam. Construction of the impugned project continues unhampered by either the regulatory process or West Moberly’s judicial recourse because both the executive and the judiciary have decisively refused to answer the question of treaty infringement.

The first opportunity for West Moberly to assert their treaty rights and claim infringement arose during the environmental assessment (EA) process. Site C triggered both a Federal EA and a Provincial EA. A Joint Review Panel (JRP) was assembled to review the effects of the project, carry out Indigenous consultation, offer recommendations, suggest mitigation measures, and provide a report to the appropriate Provincial and Federal Ministers vested with the authority to approve or reject the project.²¹ On October 14, 2014, Ministers for the BC and Federal governments determined Site C to be “in the public interest as required by S17 of the *EAA*” and “justified under S54 of the *CEAA*,” respectively. The Ministers decisions were based on the report and materials compiled by the JRP.²² Problematically however, the JRP’s terms of reference explicitly instructed the administrative body not to make any

¹⁸ Gutman, *supra* note 2 at 11.

¹⁹ Bruce McIvor, “The Piecemeal Infringement of Treaty Rights,” online at First Peoples Law <<https://www.firstpeopleslaw.com/index/articles/184.php>>.

²⁰ McIvor, *supra* note 19.

²¹ Gutman, *supra* note 2 at 12.

²² *West Moberly*, *supra* note 5 at 38.

determination of treaty infringement.²³ Despite the massive impact of Site C and the assertion from West Moberly and other Treaty 8 Nations that the project constituted an infringement on their treaty rights, the Crown governments decided their obligations did not extend beyond fulfilling the procedural duty to consult and accommodate, and instructed the JRP as such.²⁴

The Ministers had before them much evidence that the project was at high risk of infringing upon Treaty 8 rights. While the JRP was disallowed from commenting on the question of infringement, their report stated that Site C would “significantly affect the current use of land and resources for traditional purposes by Aboriginal peoples.”²⁵ Furthermore, the JRP found that the project’s impact on fish and fish habitat was likely have a “significant adverse and irreversible effect on Aboriginal fishing.”²⁶ The reservoir would potentially be completely unsuitable for fishing, and even in the alternative, “knowledge of fishing sites, preferred species, and cultural attachment to specific sites would be lost.”²⁷ In addition, the JRP found that Site C “was likely to cause significant adverse effects on hunting and trapping practices, which could not be mitigated,” as well as “significant adverse cumulative effects on current uses of lands and resources, such as habitation sites, feather-gathering sites, firewood harvesting sites, drinking water, trails and water routes, and berry and plant gathering sites.”²⁸ In addition to the JRP report, the Ministers received a letter from affected First Nations stating, “the loss of the Peace River Valley would be an *infringement* on the exercise of our Treaty Rights [...] It is simply not possible to adequately compensate our community for the permanent destruction of the Peace

²³ Gutman, *supra* note 2 at 13.

²⁴ Gutman, *supra* note 2 at 12.

²⁵ Gutman, *supra* note 2 at 13.

²⁶ Gutman, *supra* note 2 at 13.

²⁷ Gutman, *supra* note 2 at 13.

²⁸ Gutman, *supra* note 2 at 13.

River Valley.”²⁹ Further, the JRP presented the Ministers with evidence that suggested if the project is an infringement of Treaty 8 rights, it may not pass a *Sparrow* justification test due to the lack of a compelling and substantive objective behind Site C. Indeed, the JRP determined that “BC Hydro had not fully demonstrated the need for the project” and “noted the availability of a number of [energy] supply alternatives immediately capable of adding a large load capacity at economical costs.”³⁰ Despite knowledge of the significant risk that taking up of land for Site C constitutes an infringement of Treaty 8, the relevant government officials interpreted their obligations under Treaty 8 to have been fulfilled by discharging the duty to consult and accommodate.

The administrative decision to leave the treaty infringement question unanswered was judicially upheld in 2015: *Prophet River v BC (Prophet River #1)*.³¹ West Moberly and Prophet River challenged the constitutionality and reasonableness of the BC Ministers issuing an EA certificate without making any determination of treaty infringement or justification.³² However, the BC Supreme Court (BCSC) decided that the EA process is not the appropriate forum for making determinations of treaty infringement and that the Minister was under no obligation to do so prior to issuing an EA certificate. Moreover, the Court found the Minister’s powers to be “political and policy based” rather than “rights-based.”³³

Prophet River #1 was followed by a string of unsuccessful applications and appeals. The BC Court of Appeal (BCCA) dismissed an appeal from *Prophet River #1*. In *Prophet River First*

²⁹ Gutman, *supra* note 2 at 14.

³⁰ Gutman, *supra* note 2 at 13.

³¹ Gutman, *supra* note 2 at 5.

³² Gutman, *supra* note 2 at 14.

³³ McCarthy Tetrault LLP, “Prophet River First Nation v British Columbia (Environment), 2015BCSC 1682” online at Mondaq: < <https://www.mondaq.com/canada/Energy-and-Natural-Resources/475754/Prophet-River-First-Nation-v-British-Columbia-Environment-2015-BCSC-1682>>.

Nation v British Columbia (Forests, Lands and Natural Resource Operations) the BCSC declined to issue an interlocutory injunction to hold off construction until the conclusion of other judicial review applications challenging the approval of Site C. In 2016, the BCSC dismissed an application for judicial review of a number of the project's permits, exemptions, and notifications in *Prophet River First Nation v BC (Minister of Forests, Lands, and Natural Resource Operations)*.³⁴ The federal approval of the project was also unsuccessfully challenged in *Prophet River First Nation v Canada (AG)*. An appeal from the Federal Court's decision was dismissed by the Federal Court of Appeal. Furthermore, the applications for leave to appeal from the decisions of both the federal and provincial appellate courts were denied by the SCC.³⁵

Ultimately, the courts have repeatedly held that neither the administrative decision makers in the regulatory process, nor judges hearing judicial review challenges, are competent to "adjudicate the scope and implications of [the petitioners'] treaty rights."³⁶ Moreover, the issue of treaty infringement is "best left to the courts in a separate action."³⁷ This puts a massive burden on Indigenous Nations to challenge unconstitutional government action by commencing a full, separate civil claim, rather than requiring Ministers to ensure government action is constitutional in the first place, with judicial review as an enforcement mechanism.³⁸

Committed to upholding and protecting their Treaty 8 rights, West Moberly followed the procedure for asserting a treaty right infringement laid out by the judicial review courts and commenced a separate action to determine the question of infringement and justification. West Moberly's civil claim alleges "that the Project infringes West Moberly's rights under Treaty 8 as

³⁴ *West Moberly*, *supra* note 5 at 45.

³⁵ *West Moberly*, *supra* note 5 at 46-47.

³⁶ *West Moberly*, *supra* note 5 at 48.

³⁷ Gutman, *supra* note 2 at 14.

³⁸ Gutman, *supra* note 2 at 14.

protected by section 35 of the *Constitution Act, 1982*, and that the infringement cannot be justified.”³⁹ However, by 2018 when the claim was filed, after years of participating in the regulatory process and fighting the approval of Site C in various courts, project construction was well underway. The much of the activity which is alleged to infringe West Moberly’s treaty rights will already have been carried out prior to the conclusion of their civil action. Indeed, the trial is not scheduled to occur until mid 2023.⁴⁰ Therefore, West Moberly applied for an injunction ordering BC Hydro to pause work on the Site C dam.⁴¹

West Moberly’s notice of claim sought the following relief:

“(a) Declarations that "in causing and/or permitting the cumulative impacts of the Bennett, Peace Canyon, and Site C Dams" and in "permitting the construction or operation of the Site C Dam", the Crown has breached its obligations to West Moberly under Treaty 8, and unjustifiably infringed West Moberly's Treaty 8 Rights (notice of civil claim, part 2, paras. 1, 2); and (b) Interim, interlocutory and/or permanent injunctions prohibiting Canada and BC from issuing any approvals required for the construction, completion or operation of Site C, and prohibiting BC Hydro from continuing or completing construction of Site C and flooding the Peace River.”⁴²

West Moberly’s application for an interim injunction requested an order to:

“(i) stop all work on the Project pending trial, except for works required for safety, to protect the environment and to maintain works in place; (ii) in the alternative, on certain conditions, stopping (i) flooding of the reservoir and (ii) work within certain areas called "critical areas" by West Moberly.”⁴³

Unfortunately for West Moberly, BC Supreme Court Justice Warren Milman was “not persuaded that either form of the injunction sought should be granted.”⁴⁴ In applying the three part test for granting an injunction articulated by the SCC in *RJR Macdonald*, Justice Milman

³⁹ *West Moberly*, *supra* note 5 at 2.

⁴⁰ *West Moberly*, *supra* note 5 at 363.

⁴¹ *West Moberly*, *supra* note 3 at 4.

⁴² *West Moberly*, *supra* note 3 at 14.

⁴³ *West Moberly*, *supra* note 3 at 16.

⁴⁴ *West Moberly*, *supra* note 5 at 7.

found that West Moberly (1) “raised a serious question to be tried” and (2) demonstrated “there is a risk that it will suffer irreparable harm if an injunction is not granted;” however, the Court concluded that (3) “the balance of convenience lies against granting either form of the injunction.”⁴⁵ Justice Milman’s judgement on the balance of convenience was justified with the following reasons:

“(a) although the claim raises a serious question to be tried, West Moberly's chances of ultimately succeeding with it and halting the Project permanently are not strong
(b) the proposed injunction, in either of its iterations, would be likely to cause significant and irreparable harm to BC Hydro, its ratepayers and other stakeholders in the Project, including other First Nations and that harm outweighs the risk of harm to West Moberly flowing from not granting an injunction; and
(c) this application was brought relatively late in the life of the Project (i.e., two and a half years after the commencement of construction), significantly compounding the harm that an injunction would cause.”⁴⁶

From the outset of the judgement, it is clear that two different worldviews and value systems are being weighed against each other. Justice Milman notes that “West Moberly emphasizes the centrality of the Peace River and its environs to its culture, identity, and way of life,”⁴⁷ and the importance of the area for hunting, trapping, fishing, gathering vocations, as well as “spiritual ceremonies and celebrations.”⁴⁸ However, these points are juxtaposed with the Peace Valley’s potential for energy production and economic development. Numerical economic factors are emphasized such as the fact that BC Hydro had already invested 2.4\$ billion, worked with 200 contractors, and employed 2000 people.⁴⁹ The judgement marvels at the estimated capacity of the Site C dam to “generate up to 35% of the power produced at the WAC Bennett dam using a reservoir that will be only about 5% as big as Williston.”⁵⁰ Justice Milman chooses

⁴⁵ *West Moberly*, *supra* note 5 at 8.

⁴⁶ *West Moberly*, *supra* note 5 at 8.

⁴⁷ *West Moberly*, *supra* note 5 at 10.

⁴⁸ *West Moberly*, *supra* note 5 at 11.

⁴⁹ *West Moberly*, *supra* note 5 at 63.

⁵⁰ *West Moberly*, *supra* note 5 at 30.

to reference a quote from the JRP report that proposes future generations will view Site C as a “wonderful gift from the ancestors” and forget the loss of the Peace Valley just as we have forgotten the loss of the pristine wilderness flooded by previous hydroelectric projects on the Peace River.⁵¹ The implication appears to be that it in time everyone will understand that any cultural, emotional, or spiritual attachment to the Peace River Valley was worth sacrificing for the benefits of heightened electricity consumption and economic development. I wonder whether the Indigenous Nations whose traditional territories were flooded without their consent by BC Hydro in 1967 for the WAC Bennett Dam and 1980 for the Peace Canyon Dam would agree with this sentiment.

After establishing that West Moberly has raised a serious question to be tried (though the court casts doubt on the strength of their claim)⁵² and recognizing that refusing an injunction will result in irreparable harm for West Moberly,⁵³ the court moves onto considering the balance of convenience. Justice Milman is of the opinion that granting an injunction would result in chaos, disarray, delays, job losses, and increased costs that would constitute irreparable harm to BC Hydro and third party stakeholders, particularly in light of West Moberly’s refusal to provide an undertaking in damages in the event they lose their civil claim.⁵⁴ Indeed, Justice Milman is unconvinced by West Moberly’s argument that, considering the 10.7\$ billion price tag of the project, the additional costs that would be incurred by an injunction – particularly one that only protects “critical areas” – is not an unreasonable price to pay for ensuring constitutionally protected treaty rights are not infringed.⁵⁵ Moreover, Justice Milman concludes that “irreparable financial harm”

⁵¹ *West Moberly*, *supra* note 5 at 37.

⁵² *West Moberly*, *supra* note 5 at 276.

⁵³ *West Moberly*, *supra* note 5 at 286.

⁵⁴ *West Moberly*, *supra* note 5 at 295-312.

⁵⁵ *West Moberly*, *supra* note 5 at 300.

and economic consequences of granting an injunction outweigh both the “irreparable harm flowing from an unjustified infringement of Treaty 8” and “the public interest in advancing the cause of access to justice and reconciliation.”⁵⁶ The judgement acknowledges that this conclusion may seem discordant with the guidance provided by the SCC in *Haida* to take care that jobs, government revenues, and the economy not receive “undue emphasis” in the balance of convenience test... with the result that Aboriginal interests tend to “lose” outright pending a final determination of the issue.”⁵⁷ Justice Milman justifies his decision partly by arguing that there are there are “Aboriginal interests weighing on both sides” because BC Hydro has contracts to employ certain Indigenous groups.⁵⁸ He declines to reckon, however, with the fact that the “Aboriginal interests” of West Moberly are constitutionally protected rights and therefore must be significantly more prioritized the economic interests of Indigenous peoples who rationally seek to benefit financially from incoming major projects.

Justice Milman invoked the doctrine of laches and remonstrated West Moberly for bringing their civil claim after construction had already started and essentially “sleep[ing] on their rights.”⁵⁹ To believe it was unreasonable for West Moberly to wait and see whether their ongoing judicial review cases or the change in provincial government would result in enforcement of their treaty rights is to wrongly ignore their financial and capacity restraints. Considering West Moberly’s consistent assertion that Site C infringes their treaty rights during the consultation period, and their persistence in litigating this assertion following the project’s approval, this criticism puts an unfair burden on West Moberly to take no pause prior to initiating yet another time and resource intensive litigation. Conversely, Justice Milman does not

⁵⁶ *West Moberly*, *supra* note 5 at 333.

⁵⁷ *West Moberly*, *supra* note 5 at 335.

⁵⁸ *West Moberly*, *supra* note 5 at 336.

⁵⁹ *West Moberly*, *supra* note 5 at 318.

apply a similar burden on the Crown: at no point in the judgement does he suggest that BC Hydro should have forestalled construction and refrained from spending billions of taxpayer dollars until the outstanding treaty infringement claims were settled.

In addition to denying an injunction, Justice Milman also rejected West Moberly's request for an expedited trial within 18 months. The sole protection given to West Moberly's treaty rights was an order that the trial be completed before the reservoir is actually flooded (mid 2023). However, all other work can go ahead up until that point to strip the flood zone bare and construct the colossal dam.⁶⁰ Therefore, even if West Moberly wins at trial in 2023 the victory will be a moral and legal one – the lands, river, and ecosystems required to practice their treaty rights will have been irrevocably destroyed years prior.

Unfortunately, the judicial treatment of West Moberly's injunction application is not unique. An Indigenous led think tank, the Yellowhead Institute, conducted a study that found that injunctions filed by Indigenous Nations against corporations and governments are denied 81 and 82 percent of the time, respectively.⁶¹ Conversely, the study found that “companies can more or less get injunctions if there is any whiff of economic loss.”⁶² The data demonstrates that in the balance of convenience test, courts are more receptive and sympathetic to harms expressed in economic terms rather than harm to Indigenous peoples' rights.⁶³ Consequently, constitutionally protected rights are consistently, irreparably infringed as Indigenous Nations wait for their day in court.

⁶⁰ *West Moberly*, *supra* note 5 at 363.

⁶¹ Stephanie Wood, “Courts Deny Most First Nations Injunctions” (2019) National Observer online at <<https://www.nationalobserver.com/2019/11/08/features/courts-deny-most-first-nations-injunctions>>.

⁶² Yellowhead Institute, “Land Back: A Yellowhead Institute Red Paper” (2019) at 30.

⁶³ Wood, *supra* note 61.

The experience of West Moberly begs the question: how meaningless must treaties rights be in the eyes of the executive and the judiciary if massively impactful projects like Site C do not warrant a determination of infringement and justification prior to proceeding with approval and construction? Indeed, the reluctance of Crown government officials, both in the executive and the judiciary, to address West Moberly's assertion of treaty infringement has turned constitutionally protected treaty rights into nothing more than "paper rights." Thus, the Crown's treaty right to "take up land" remains unrestricted by the Indigenous signatories' countervailing rights to hunt, fish, trap, and continue their usual vocations. It cannot be imagined that the Indigenous signatories of Treaty 8 envisioned or intended for the Crown to be allowed to proceed, without consent, with the construction a hydroelectric project that would flood 5,550 hectares of their traditional territory.⁶⁴ Moreover, it is unreasonable to understand Treaty 8 as granting to the "Crown an unlimited right to take up lands for any purpose it chooses."⁶⁵ One solution proposed by Rachel Gutman is to require a determination of whether the taking up of land infringes Indigenous treaty rights, and whether an infringement is justified under the *Sparrow* test, during the consultation process for the projects, such as Site C, that "present [a] significant risk to Treaty 8 rights."⁶⁶ Ultimately it is clear that a shift of some form is required for Indigenous Nations, such as West Moberly, to have their treaty rights meaningfully actualized. Crown governments and courts do not deny the existence of treaty rights, however they have constructed a legal framework that that allows projects to proceed prior to any determination of infringement and justification. Within this framework, treaty rights are outweighed by economic interests and are thereby powerless to protect their bearers' interests.

⁶⁴ Gutman, *supra* note 2 at 21.

⁶⁵ Gutman, *supra* note 2 at 21.

⁶⁶ Gutman, *supra* note 2 at 19.

Explanation of Creative Project:

I created a piece of art that is meant to symbolically represent the struggle of West Moberly to meaningfully assert their rights recognized in relation to Site C. The larger dome in the foreground represents West Moberly's treaty rights. The bird in the center of the dome is the public-facing logo of West Moberly. The scene behind the bird depicts the Peace River valley thriving in its natural state, and therefore capable of facilitating West Moberly's treaty rights to hunt, fish, trap, and gather, as well as their spiritual and cultural rights. The dome, representing West Moberly's treaty rights, is suspended in the air by a chain that is strung up around a tree branch and attached to another dome. The second dome is filled with a money bag and is firmly on the ground, clearly outweighing the first dome. The two domes are meant to loosely resemble the scales of justice and symbolically represent how the economic and financial factors weighing in favor of proceeding with Site C have been prioritized over the risk of unjustifiably infringing on West Moberly's treaty rights. The background depicts the construction of Site C and destruction of the Peace River Valley that results from this imbalance. The treaty rights are present in the scene but are "trapped" and therefore are powerless to do more than overlook the destruction. Overall, the art is intended to communicate the frustrating futility of the Canadian executive and judiciary recognizing the existence of West Moberly's substantive, constitutionally protected rights under Treaty 8 while also implementing a regulatory and legal framework that makes it nearly impossible for West Moberly to effectively assert their treaty rights.



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